

**IN THE HIGH COURT OF MANIPUR
AT IMPHAL**

W.P.(C) No.311 of 2020

Manipur People's Party (MPP) bearing Registration No.56/R/26/89 represented by its President Shri Oinam Jugindro Singh, aged about 70 years, S/o. (L) O. Jugeshwore Singh having its Administrative Office at MPP Complex, Khwai Bazar Pologround Maning, P.O. Imphal, P.S. City, Imphal West District, Manipur-795001.

..... ***Petitioner/s***

– Versus –

1. State of Manipur, represented by the Chief Secretary, Govt. of Manipur, having its office at Secretariat Complex, Babupara, P.O. & P.S. Imphal, Imphal West District, Manipur, Pin-795001;
2. The Special Secretary/Commissioner (Home), Government of Manipur, having its office at Secretariat Complex, Babupara, P.O. & P.S. Imphal, Imphal West District, Manipur, Pin – 795001;
3. The Director General of Police, Manipur, having its office at Manipur Police Complex, Babupara, P.O. & P.S. Imphal, Imphal West District, Manipur, Pin-795001;
4. The Superintendent of Police, Imphal West, Police Headquarters, Babupara Opposite Secretariat

Complex, P.O. & P.S. Imphal, Imphal West District,
Manipur, Pin – 795001;

5. The Officer-in-Charge, City Police Station, having its
office at MG Avenue (near UCB Bank), P.O. Imphal,
P.S. City, Imphal West District, Manipur-795001.

.... ***Respondent/s***

BEFORE

HON'BLE MR. JUSTICE M.V. MURALIDARAN

For the Petitioner/s : Mr. H.S. Paonam, Sr. Advocate

For the Respondent/s : Mr. H. Samarjit, G.A.

Date of Hearing
And : **07.10.2020**
Judgment & Order

JUDGMENT & ORDER
(ORAL)

The writ petitioner has filed the writ petition seeking the prayers as
follows:-

- i) *Issue rule and call for records.*
- ii) *Issue a writ in the nature of mandamus or any other appropriate writ of the like nature for directing the Respondents more particularly respondent No. 3 (Director General of Police,*

Manipur) and Respondent No.4 (Superintendent of Police, Imphal West) to issue directions to the Respondent No.5 (Officer-in-charge, City Police Station) to open the administrative office of the Manipur People's Party i.e. the petitioner party located at MPP Complex, Khwai Bazar, Polo Ground Maning, Manipur which was locked down arbitrary by the police personnel of the City Police Station without assigning any specific reasons or explicit orders coupled with a prayer to direct the respondents to consider and dispose of the Representation dated 06.06.2020 addressed to the Respondents annexed at Annexure –A/5 in respect of the same within a certain reasonable period.

- iii) In the interim, direct the Respondents No.3 and 4 to direct the Respondent No.5 (Officer in charge, City Police Station, Imphal) to open the administrative office of the MPP Complex located at MPP Complex, Khwai Bazar, Polo Ground Maning.*
- iv) Pass any further order/orders, directions which this Hon'ble Court may deem fit and proper to secure the end of justice.*

[2] While pendency of the writ petition, 2(two) Misc.Cases have been filed by the petitioners in MC[W.P.(C)] Nos.113 & 114 of 2020 seeking the prayers as follows:-

“ Prayers of MC[W.P.(C)] No.113 of 2020

In the above circumstance, it is most respectfully prayed that this Hon'ble Court may be pleased to:

- a. Pass a direction to implead the Applicants as Party respondent Nos.6 to 9 in the above referred Writ Petition (C) No. 311 of 2020;*
- b. Pass such other/orders as may be just and proper under the facts and circumstances of the case.*

Prayer of MC[W.P.(C)] No.114 of 2020

Therefore, in the aforesaid facts and circumstances, it is prayed that, Your Lordships be graciously be pleased to implead the Applicant as respondent in the referred writ petition (W.P.(C) No. 311 of 2020) for the ends of justice.”

[3] When the matter is taken up today, I heard Mr. H.S. Paonam, Ld. senior counsel for the petitioner in the main writ petition; Mr. N. Jotendro, Ld. senior counsel for the applicant/petitioner in MC[W.P.(C)] No.113 of 2020; Mr. Y. Nirmolchand, Ld. senior counsel for the applicant/petitioner in MC[W.P.(C)] No.114 of 2020; & Mr. H. Samarjit, Ld. GA for the State respondent.

[4] During the course of argument, Mr. H.S. Paonam, Ld. senior counsel for the petitioner represented before this Court that he has filed an additional affidavit dated 05.10.2020 in which Annexure A/8 dated 15.09.2020 has been produced.

[5] The Annexure A/8 dated 15.09.2020 which is enclosed in the additional affidavit dated 05.10.2020 filed by the writ petitioner reads as follows:-

**“GOVERNMENT OF MANIPUR
OFFICE OF THE DISTRICT MAGISTRATE: IMPHAL WEST DISTRICT**

NO.DM(IW)1/CON/529/L&O/2010 Imphal, the 15th September, 2020

To

Shri Yumnam Bhim Singh,
Vice President,
Manipur People's Party(MPP)

Subject: Request for opening the office of Manipur People's Party (MPP) in view of the Resolutions of the Working Committee of MPP dated 05.09.2020 regarding the ensuing By-Election Manipur Legislative Assembly-reg.

Sir,

In inviting a reference to your letter bearing No.042A/VP-MPP/DC 2020 - 01 dated 8th September, 2020 on the above subject, it is to state that this office had issued prohibitory orders dated 20.02.2020 thereby restricting the entry of any person within the premises of Manipur People's Party (MPP) and the same was, thereafter, not rescinded or altered by the undersigned or any other Magistrate.

2. It is further to state that Section 144 (4) of the Code of Criminal Procedure 1973 provides that “no order under Section 144 Cr.P.C. shall remain in force for more than two months from the making thereof: provided that, if the State Government considers it

necessary so to do for preventing danger to human life, health or safety or for preventing a riot or any affray, it may, by notification, direct that an order made by a Magistrate under this Section shall remain in force for such further period not exceeding six months from the date on which the order made by the Magistrate would have, but for such order, expired, as it may specify in the said notification”.

In view of the above, the prohibitory orders of even number dated 20.02.2020 of this office is no more in force.

*Yours faithfully,
(Naorem Praveen Singh)
District Magistrate,
Imphal West District, Manipur.”*

[6] Thereafter, Mr. H.S. Paonam, Ld. senior counsel for the petitioner further argued that as per the above letter dated 15.09.2020, Annexure A/8, Mr. H.S. Paonam, Ld. senior counsel for the petitioner represented that the writ petition itself is infructuous.

[7] Accordingly, Mr. H.S. Paonam, Ld. senior counsel for the petitioner prayed this Court by referring the said letter dated 15.09.2020 that the writ petition may be closed as infructuous.

[8] On the other hand, Mr. N. Jotendro, Ld. senior counsel for the petitioner/applicant in MC[W.P.(C)] No.113 of 2020 and Mr. Y. Nirmolchand, Ld. senior counsel for the petitioner/applicant in

MC[W.P.(C)] No.114 of 2020 also represented the same and informed this Court as per the above letter dated 15.09.2020, Annexure A/8, the writ petition itself is infructuous.

[9] Mr. H. Samarjit, Ld. GA appearing for the State respondent in the writ petition also represented the same that as per the letter dated 15.09.2020, this writ petition is infructuous.

[10] Mr. N. Jotendro, Ld. senior counsel for the petitioner/applicant in MC[W.P.(C)] No.113 of 2020 and Mr. Y. Nirmolchand, Ld. senior counsel for the petitioner/applicant in MC[W.P.(C)] No.114 of 2020 represented that the petitions/Misc.Applications filed by them in MC[W.P.(C)] Nos. 113 & 114 of 2020 may be allowed by impleading them as party respondents in the main writ petition, and the suitable order may be passed in the main writ petition.

[11] Accordingly, both the Misc.Applications in MC[W.P.(C)] Nos. 113 & 114 of 2020 are allowed.

[12] Registry is directed to carry out the amendment in the main writ petition.

[13] Accordingly, I am inclined to pass the following orders:-

a) the writ petition is closed as infructuous as per the letter dated 15.09.2020, Annexure A/8;

b) the parties are directed to approach appropriate forum for their grievance suitably.

[14] Issue copy to both the parties.

JUDGE

FR/NFR

-Larson

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by Yumkham
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2020.10.07
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